

Court No. - 39

Case :- WRIT - C No. - 24926 of 2021

Petitioner :- Prashant Kumar Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Brij Lal Shukla

Counsel for Respondent :- C.S.C.,Abhishek Srivastava

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Krishan Pahal,J.

Heard learned counsel for the petitioner, Sri Gaurav Bishan, learned Advocate holding brief of Sri Abhishek Srivastava, learned counsel for the respondents and also perused the record.

The petitioner herein seeking a new electricity connection with the assertion that he and his family is living in dark. It appears that there is some family dispute with regard to the house in question. However, the contention of the petitioner is that he is presently residing in the said house and the application dated 17.04.2021 has been given to the Executive Engineer, Vidyut Vitran Khand seeking a new electricity connection. The requisite fee has also been deposited by the petitioner. The prayer in the writ petition is to issue a mandamus commanding the respondent competent authority i.e. Executive Engineer, Vidyut Vitran Khand, Pancham to decide the representation dated 02.09.2021 filed by the petitioner.

Looking to the prayer made in the present writ petition, we dispose of the present petition with the direction that the Executive Engineer concerned, shall consider the claim of the petitioner for grant of new electricity connection taking into consideration the provisions of Clause 4.3 of the Electricity Supply Code, 2005 and an expeditious decision in accordance with law shall be taken, preferably within a period of four weeks from the date of presentation of a copy of this order, after giving due notice and opportunity to all concerned.

Order Date :- 16.11.2021/Siddhant